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The notion that anything in the Constitution prevents States from passing laws prohibiting the dismembering of a living child is implausible. But under the “undue burden” standard adopted by this Court, a restriction on abortion—even one limited to prohibiting gruesome methods—is unconstitutional if “the ‘purpose or effect’ of the provision ‘is to place a substantial obstacle in the path of a woman seeking an abortion before the fetus attains viability.’” *Whole Woman’s Health v. Hellerstedt*, 579 U. S. 582, 589–590 (2016) (quoting *Planned Parenthood of Southeastern Pa. v. Casey*, 505 U. S. 833, 878 (1992) (plurality opinion); emphasis deleted). Here, abortion providers persuaded the District Court—despite mixed medical evidence—that other abortion methods were too risky, and the lower courts therefore held that Alabama’s law had the *effect* of burdening abortions even though it did not prevent them. Ordinarily, balancing moral concerns against the risks and costs of alternatives is a quintessentially legislative function. But as the Court of Appeals suggested, the undue-burden standard is an “aberration of constitutional law.” 900 F. 3d, at 1314; *Stenberg v. Carhart*, 530 U. S. 914, 982 (2000) (THOMAS, J., dissenting) (explaining that the standard “was constructed by its authors out of whole cloth”).

This case serves as a stark reminder that our abortion jurisprudence has spiraled out of control. Earlier this Term, we were confronted with lower court decisions *requiring* States to allow abortions based solely on the race, sex, or disability of the child. *Box v. Planned Parenthood of Ind. and Ky., Inc.*, 587 U. S. 490, 494 (2019) (THOMAS, J., concurring). Today, we are confronted with decisions *requiring* States to allow abortion via live dismemberment. None of these decisions is supported by the text of the Constitution. *Gonzales v. Carhart*, 550 U. S. 124, 169 (2007) (THOMAS, J., concurring). Although this case does not present the opportunity to address our demonstrably erroneous “undue burden” standard, we cannot continue blinking the reality of what this Court has wrought.

No. 18–989. UNITED STATES *v.* LEWIS. C. A. 5th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 907 F. 3d 891.

No. 18–1093. CITY OF JOLIET, ILLINOIS, ET AL. *v.* MANUEL. C. A. 7th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 903 F. 3d 667.

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No. 18–7277. *McGEE v. McFADDEN*, WARDEN. C. A. 4th Cir. Certiorari denied. Reported below: 733 Fed. Appx. 134.

JUSTICE SOTOMAYOR, dissenting.

Pro se petitioner Shannon McGee has a strong argument that his trial and resulting life sentence were fundamentally unfair because the State withheld material exculpatory evidence. See *Brady v. Maryland*, 373 U.S. 83, 87 (1963). The state courts offered flawed rationales for rejecting that claim. Nevertheless, the District Court denied McGee federal habeas relief, and both the District Court and the U.S. Court of Appeals for the Fourth Circuit summarily declined to grant McGee a “certificate of appealability” (COA), 28 U.S.C. §2253(c), concluding that his claim was not even debatable. Without a COA, McGee cannot obtain appellate review on the merits of his claim. See *ibid.* Because the COA procedure should facilitate, not frustrate, fulsome review of potentially meritorious claims like McGee’s, I would grant the petition for writ of certiorari and reverse the denial of a COA.

I

McGee is serving a life sentence without possibility of parole in a South Carolina state prison, having been convicted in 2006 of sexually abusing his minor stepdaughter. The State’s case at his trial featured testimony from a jailhouse informant named Aaron Kinloch, who claimed that McGee confessed the abuse to him while the two men were incarcerated together. The prosecutor trumpeted Kinloch’s apparent altruism in his closing argument:

“[N]ormally you will hear a defendant—a defense lawyer get up here and scream about a deal, what he got out of it, or, you know, some kind of expectation of reward for this lie, but again, the defense is really going to have to search for a really, sort of hidden agenda of this Aaron Kinloch. . . . I don’t know what motive he would have to come in here and fabricate this awful story.” App. in *McGee v. State*, No. 2014–000297 (S.C.), pp. 152–153.

As it turns out, that was not the full story. Shortly after the trial ended, the prosecutor turned over a letter from Kinloch not previously disclosed to the defense in which Kinloch volunteered his testimony in exchange for the prosecutor’s “help” with pending charges. Kinloch wrote: “I’m willing to help, if you are cause

I do need your help. . . . P.S. If Need Be I WILL Testify!” *Id.*, at 524. Kinloch sent the letter three days after learning of the charges against him.¹

Ever since the belated disclosure of the letter, McGee has persistently but unsuccessfully argued that he is entitled to a new trial at which he could use the letter to call into question Kinloch’s testimony. See generally App. to Pet. for Cert. 57–61. The state courts denied McGee’s claim on both direct and postconviction review. The District Court denied McGee’s *pro se* petition for federal habeas corpus relief under 28 U. S. C. § 2254 and declined to issue a COA. The Court of Appeals likewise denied a COA. McGee, still *pro se*, petitioned for a writ of certiorari to review that denial.

II

Withholding Kinloch’s letter could be a classic violation of the prosecutor’s constitutional duty to disclose material evidence favorable to the defense. See *Kyles v. Whitley*, 514 U. S. 419, 432–433 (1995); *Giglio v. United States*, 405 U. S. 150, 153–155 (1972); *Brady*, 373 U. S., at 87. The trial court said unequivocally that the letter should have been turned over. See App. C to Brief in Opposition 4 (describing the prosecutor’s decision as showing “clear disregard for his responsibility as a prosecutor to seek justice”). The main question throughout the history of McGee’s case has been whether the letter was “material” to the jury’s guilty verdict. See, e. g., *Wearry v. Cain*, 577 U. S. 385, 392 (2016) (*per curiam*).

To establish that the letter was “material” (and thus to prevail in the state courts), McGee had to show only that the letter would “‘undermine confidence’ in the verdict,” not that he would have been acquitted with it. *Ibid.* That is, he had to show a “‘reasonable likelihood’” that the letter “could have ‘‘affected the judgment of the jury.’”” *Ibid.*; see also *Kyles*, 514 U. S., at 434–435. Under the Antiterrorism and Effective Death Penalty Act of 1996 (AEDPA), McGee must further show on federal habeas review that the state court’s adjudication of his *Brady* claim was (1) “contrary to, or involved an unreasonable application of, clearly established Federal law, as determined, by the Supreme Court,” or (2) “based on an unreasonable determination of the facts

¹ Although the letter shows that Kinloch had in mind a *quid pro quo* when he first approached the prosecutor with his account of McGee’s confession, there is no indication that any deal was ever struck.

in light of the evidence presented in the State court proceeding.” 28 U. S. C. § 2254(d).

The lower courts should have granted McGee a COA to allow review of the District Court’s conclusion that the AEDPA standard was not met, because McGee has at least made “a substantial showing of the denial of a constitutional right.” § 2253(c)(2). “At the COA stage, the only question is whether the applicant has shown that ‘jurists of reason could disagree with the district court’s resolution of his constitutional claims or that jurists could conclude the issues presented are adequate to deserve encouragement to proceed further.’” *Buck v. Davis*, 580 U. S. 100, 115 (2017) (quoting *Miller-El v. Cockrell*, 537 U. S. 322, 327 (2003)). This “threshold” inquiry is more limited and forgiving than “‘adjudication of the actual merits.’” *Buck*, 580 U. S., at 116–117 (quoting *Miller-El*, 537 U. S., at 337); see also *id.*, at 336 (noting that “full consideration of the factual or legal bases adduced in support of the claims” is not appropriate in evaluating a request for a COA).

Indications abound that McGee’s *Brady* claim “deserve[d] encouragement to proceed further.” *Miller-El*, 537 U. S., at 327. First, Kinloch’s letter evinces a particularized motive to lie, one distinct from and potentially more probative than any generalized doubts about Kinloch’s credibility that McGee was able to sow without it. See *Davis v. Alaska*, 415 U. S. 308, 316–318 (1974).

Second, the state-court determinations that Kinloch’s letter was immaterial rested on dubious premises. The state trial court saw no likelihood that the letter would have impacted the outcome of McGee’s trial because, “while this evidence could have been favorable to [McGee], it did not indicate that in fact a deal for the testimony had been reached.” App. C to Brief in Opposition 4.² The State Court of Appeals affirmed that conclusion without further analysis. But the trial court’s reasoning was doubtful, given that this Court has said that “a witness’ attempt to obtain a deal before testifying” can be material “even though the State had made no binding promises.” *Wearry*, 577 U. S., at 394 (citing *Napue v. Illinois*, 360 U. S. 264, 270 (1959)).

When McGee again raised his *Brady* claim on state collateral review, the state postconviction court rejected it primarily be-

² See also App. C to Brief in Opposition (“In light of all the evidence and testimony, and in particular, the lack of any facts indicating any deal struck between the witness and the [prosecutor], it is this court’s finding that the defendant received ‘a fair trial resulting in a verdict worthy of confidence’”).

cause the claim had been addressed already on direct review. In the alternative, however, the court offered the new ground that the claim lacked merit because McGee's counsel had attacked Kinloch's credibility in other ways and the "jury was aware of Kinloch's prior conviction and pending charges." App. D to Brief in Opposition 14. That rationale appears to rest in part on an "unreasonable determination of the facts," 28 U. S. C. § 2254(d)(2); I see no indication in the trial transcript that the jury was in fact made aware of the pending charges.

Third, the federal-court decisions reviewing McGee's claims were thinly reasoned. The Magistrate Judge offered little explanation beyond reciting the state courts' reasoning, describing the relevant legal standards, and stating that the "state courts reviewed the standard by which materiality must be judged" and "correctly applied the standard." App. to Pet. for Cert. 76. The District Court for its part recognized that McGee had put forth "a strong argument as to the *Brady* issue," but adopted the Magistrate Judge's recommendation anyway. *Id.*, at 48. It deferred to the state postconviction court's statement that the jury was aware of Kinloch's pending charges, then reasoned that the postconviction court's factual findings "completely undermine[d]" McGee's argument. *Ibid.* Yet, as noted above, the postconviction court's conclusion that the jury was aware of the pending charges appears to have been unreasonable. The District Court offered only a conclusory statement that deference on that point was appropriate, and only careful review of the trial record could permit the Court of Appeals meaningfully to evaluate McGee's contrary assertion that he could not, in fact, "effectively cross-examine Kinloch concerning pending charges," Informal Brief for Appellant in No. 18-6211 (CA4), pp. 5-6.

Finally, the District Court's was the last of four opinions (two state and, including the Magistrate Judge's recommendation, two federal) to discuss the merits of McGee's *Brady* claim. Not one of those decisions discussed the evidence against McGee apart from Kinloch's testimony or concluded that the other evidence was so overwhelming that discrediting Kinloch would not have called the jury's verdict into doubt.³

³The other evidence came from three witnesses: (1) McGee's teenage stepdaughter, who offered a detailed account of McGee's alleged molestations, but who also admitted to having previously recanted her allegations; (2) her 9-year-old brother, who generally corroborated that his sister had told him

For all these reasons, the District Court's decision was certainly "debatable." The Court of Appeals' resolution of the case in an unreasoned order denying a COA compounded the error. This case instead should have gone to a merits panel of the Fourth Circuit for closer review.

III

The federal courts handle thousands of noncapital habeas petitions each year, only a tiny fraction of which ultimately yield relief. See N. King, Non-Capital Habeas Cases After Appellate Review: An Empirical Analysis, 24 Fed. Sentencing Reporter 308, 309 (2012) (Table 2) (less than 1% of randomly selected cases in an empirical study). While the volume is high, the stakes are as well. Federal judges grow accustomed to reviewing convictions with sentences measured in lifetimes, or in hundreds of months. Such spans of time are difficult to comprehend, much less to imagine spending behind bars. And any given filing—though it may feel routine to the judge who plucks it from the top of a large stack—could be the petitioner's last, best shot at relief from an unconstitutionally imposed sentence. Sifting through the haystack of often uncounseled filings is an unglamorous but vitally important task.

COA inquiries play an important role in the winnowing process. The percentage of COA requests granted is not high, see *id.*, at 308 (study finding that "more than 92 percent of all COA rulings were denials"), but once that hurdle is cleared, a nontrivial fraction of COAs lead to relief on the merits, see *id.*, at 309 (Table 2) (approximately 6%). At its best, this triage process focuses judicial resources on processing the claims most likely to be meritorious. Cf. *Miller-El*, 537 U.S., at 337 (AEDPA's COA requirement "confirmed the necessity and the requirement of differential treatment for those appeals deserving of attention from those that plainly do not").

Unless judges take care to carry out the limited COA review with the requisite open mind, the process breaks down. A court of appeals might inappropriately decide the merits of an appeal, and in doing so overstep the bounds of its jurisdiction. See *Buck*,

that "somebody did something nasty" to her but did not name McGee, App. in No. 2014-000297 (S. C.), p. 87; and (3) a doctor who diagnosed the step-daughter with a partially torn hymen but could not say "what caused that injury," *id.*, at 131.

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580 U. S., at 115; *Miller-El*, 537 U. S., at 336–337. A district court might fail to recognize that reasonable minds could differ. Or, worse, the large volume of COA requests, the small chance that any particular petition will lead to further review, and the press of competing priorities may turn the circumscribed COA standard of review into a rubber stamp, especially for *pro se* litigants. We have periodically had to remind lower courts not to unduly restrict this pathway to appellate review. See, e. g., *Tharpe v. Sellers*, 583 U. S. 33 (2018) (*per curiam*); *Buck*, 580 U. S. 100; *Tennard v. Dretke*, 542 U. S. 274 (2004).

This case provides an illustration of what can be lost when COA review becomes hasty. It is not without complications: There may be good arguments, yet unexplored, why McGee’s claim may fall short of meeting AEDPA’s strict requirements. See § 2254(d). And of course, even a finding that McGee’s constitutional rights clearly were violated would not necessarily imply that he is innocent of the serious crimes of which he was convicted; McGee could be reconvicted after a fairer proceeding. See *Kyles*, 514 U. S., at 434–435. But the weighty question whether McGee is “in custody in violation of the Constitution,” § 2254(a), appears to have gotten short shrift here. With a lifetime of lost liberty hanging in the balance, this claim was ill suited to snap judgment.

JULY 1, 2019

Miscellaneous Order. (For revisions to the Rules of this Court effective this date, see 587 U. S. 1201.)

JULY 15, 2019

Miscellaneous Order

No. 18A1197. *PEARSON v. UNITED STATES*. Application for bail, addressed to JUSTICE SOTOMAYOR and referred to the Court, denied.

Rehearing Denied

No. 18–1113. *THOMAS v. ZELON ET AL.*, 587 U. S. 970;

No. 18–1274. *IN RE BHAGAT*, 587 U. S. 985;

No. 18–6823. *WILLIAMS v. COUNTY OF LOS ANGELES, CALIFORNIA, ET AL.*, 587 U. S. 920;

No. 18–6907. *KULICK v. LEISURE VILLAGE ASSN., INC.*, 587 U. S. 1016;

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- No. 18–7033. JACKSON *v.* UNITED STATES, 587 U. S. 941;
No. 18–7248. ANTHONY *v.* BOYD, WARDEN, ET AL., 586 U. S. 1227;
No. 18–7320. FORD *v.* JONES, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL., 586 U. S. 1169;
No. 18–7584. MARBERRY *v.* STATE BAR OF CALIFORNIA, 587 U. S. 988;
No. 18–7625. FLORENCE *v.* DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION, 587 U. S. 921;
No. 18–7628. BEVAN *v.* FLORIDA, 586 U. S. 1234;
No. 18–7640. HOCKMAN *v.* BASKERVILLE, WARDEN, 587 U. S. 922;
No. 18–7867. BRADLEY *v.* DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION, 587 U. S. 944;
No. 18–7871. VENNINGS *v.* BERRYHILL, ACTING COMMISSIONER OF SOCIAL SECURITY, 586 U. S. 1239;
No. 18–7873. SIERRA *v.* INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL., 587 U. S. 944;
No. 18–7926. BABB *v.* SMITH ET AL., 587 U. S. 945;
No. 18–7959. MAZE *v.* TERRELL ET AL., 587 U. S. 946;
No. 18–8078. WALKER *v.* CALDWELL, WARDEN, 587 U. S. 947;
No. 18–8147. HORN *v.* KANSAS, 587 U. S. 948;
No. 18–8159. CAMILLO-AMISANO *v.* UNITED STATES, 587 U. S. 925;
No. 18–8196. TART *v.* HOOKS, SECRETARY, NORTH CAROLINA DEPARTMENT OF PUBLIC SAFETY, 587 U. S. 975;
No. 18–8229. CHINN *v.* NOETH, SUPERINTENDENT, ATTICA CORRECTIONAL FACILITY, 587 U. S. 976;
No. 18–8237. BRISCOE *v.* EPPINGER, WARDEN, 587 U. S. 949;
No. 18–8280. WILLIAMS *v.* REYNOLDS, WARDEN, 587 U. S. 927;
No. 18–8290. WARE BEY *v.* PONTE ET AL., 587 U. S. 976;
No. 18–8296. ALEXANDER *v.* GILMORE, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT GREENE, 587 U. S. 990;
No. 18–8334. GONZALEZ *v.* ERNESTO GONZALEZ, 587 U. S. 990;
No. 18–8351. FRESSADI *v.* ARIZONA MUNICIPAL RISK RETENTION POOL ET AL., 587 U. S. 991;
No. 18–8443. OLIVEIRA *v.* COYNE-FAGUE ET AL., 587 U. S. 977;
No. 18–8474. HENNEBERRY *v.* COUNTY OF ALAMEDA, CALIFORNIA, ET AL., 587 U. S. 993;

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No. 18–8493. *SMITH v. UNITED STATES*, 587 U. S. 965;
No. 18–8523. *REINERIO, NKA AAEBO v. BANK OF AMERICA, N. A., ET AL.*, 587 U. S. 977;
No. 18–8535. *HELEVA v. CLARK, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT ALBION, ET AL.*, 587 U. S. 993;
No. 18–8542. *S. N. ET AL. v. SAN DIEGO HEALTH AND HUMAN SERVICES AGENCY ET AL.*, 587 U. S. 1018;
No. 18–8551. *IBEABUCHI v. ARIZONA*, 587 U. S. 1029;
No. 18–8595. *WALLACE v. LOUISIANA DEPARTMENT OF PUBLIC SAFETY AND CORRECTIONS*, 587 U. S. 1030;
No. 18–8637. *ARLOTTA v. NIAGARA FRONTIER TRANSPORTATION AUTHORITY ET AL.*, 587 U. S. 1042;
No. 18–8669. *ARLOTTA v. HERATY ET AL.*, 587 U. S. 1053;
No. 18–8678. *CAMPBELL v. FLORIDA BAR*, 587 U. S. 994;
No. 18–8691. *BOISVERT v. UNITED STATES*, 587 U. S. 995;
No. 18–8854. *ZINNEL v. UNITED STATES*, 587 U. S. 1032;
No. 18–8940. *CHI v. UNITED STATES*, 587 U. S. 1033; and
No. 18–8960. *IN RE WINKEL*, 587 U. S. 984. Petitions for rehearing denied.

JULY 19, 2019

Dismissal Under Rule 46

No. 18–1256. *BP WEST COAST PRODUCTS, LLC v. SCHARFSTEIN, INDIVIDUALLY AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED, ET AL.* Ct. App. Ore. Certiorari dismissed under this Court's Rule 46.1. Reported below: 292 Ore. App. 69, 423 P. 3d 757.

JULY 26, 2019

Miscellaneous Order

No. 19A60. *TRUMP, PRESIDENT OF THE UNITED STATES, ET AL. v. SIERRA CLUB ET AL.* D. C. N. D. Cal. Application for stay, presented to JUSTICE KAGAN, and by her referred to the Court, granted. Among the reasons is that the Government has made a sufficient showing at this stage that plaintiffs have no cause of action to obtain review of the Acting Secretary's compliance with Section 8005 [of the Department of Defense Appropriations Act, 132 Stat. 2999]. The District Court's June 28, 2019, order granting permanent injunction is stayed pending disposition of the Government's appeal in the United States Court of Appeals

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for the Ninth Circuit and disposition of the Government's petition for writ of certiorari, if such writ is timely sought. Should the petition for writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for writ of certiorari is granted, the stay shall terminate when the Court enters its judgment. JUSTICE GINSBURG, JUSTICE SOTOMAYOR, and JUSTICE KAGAN would deny the application.

JUSTICE BREYER, concurring in part and dissenting in part.

To warrant this stay, the Government must show not just (1) a reasonable probability that the Court will grant certiorari and (2) a fair prospect that the Court [will] reverse, but also (3) “a likelihood that irreparable harm will result from the denial of a stay.” *Maryland v. King*, 567 U. S. 1301, 1302 (2012) (ROBERTS, C. J., in chambers). This case raises novel and important questions about the ability of private parties to enforce Congress’ appropriations power. I would express no other view now on the merits of those questions.

Before granting a stay, however, we must still assess the competing claims of harm and balance the equities. *Barnes v. E-Systems, Inc. Group Hospital Medical & Surgical Ins. Plan*, 501 U. S. 1301, 1305 (1991) (Scalia, J., in chambers). This Court may, and sometimes does, “tailor a stay so that it operates with respect to only ‘some portion of the proceeding.’” *Trump v. International Refugee Assistance Project*, 582 U. S. 571, 580 (2017) (*per curiam*) (quoting *Nken v. Holder*, 556 U. S. 418, 428 (2009)). In my view, this is an appropriate case to do so.

If we grant the stay, the Government may begin construction of a border barrier that would cause irreparable harm to the environment and to respondents, according to both respondents and the District Court. The Government’s only response to this claim of irreparable harm is that, if respondents ultimately prevail, the border barrier may be taken down (with what funding, the Government does not say). But this is little comfort because it is not just the barrier, but the construction itself (and presumably its later destruction) that contributes to respondents’ injury.

If we instead deny the stay, however, it is the Government that may be irreparably harmed. The Government has represented that, if it is unable to finalize the contracts by September 30, then the funds at issue will be returned to the Treasury and the injunc-

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tion will have operated, in effect, as a final judgment. Respondents suggest a court could still award the Government relief after an appropriation lapses, though that proposition has yet to be endorsed by this Court.

But there is a straightforward way to avoid harm to both the Government and respondents while allowing the litigation to proceed. Allowing the Government to finalize the contracts at issue, but not to begin construction, would alleviate the most pressing harm claimed by the Government without risking irreparable harm to respondents. Respondents do not suggest that they will be harmed by finalization of the contracts alone, and there is reason to believe they would not be. See, *e. g.*, 36 OLC 11 (2012) (noting that, because of the Anti-Deficiency Act, “the government [is] legally incapable of incurring a contractual obligation to pay more money than Congress had appropriated”), online at <https://www.justice.gov/file/20596/download> (as last visited July 26, 2019); see also *Leiter v. United States*, 271 U. S. 204, 206–207 (1926); *Sutton v. United States*, 256 U. S. 575, 580–581 (1921); *Hoove v. United States*, 218 U. S. 322, 332–334 (1910); *Bradley v. United States*, 98 U. S. 104, 116–117 (1878).

I can therefore find no justification for granting the stay in full, as the majority does. I would grant the Government’s application to stay the injunction only to the extent that the injunction prevents the Government from finalizing the contracts or taking other preparatory administrative action, but leave it in place insofar as it precludes the Government from disbursing those funds or beginning construction. I accordingly would grant the stay in part and deny it in part.

JULY 29, 2019

Dismissal Under Rule 46

No. 18–505. IN RE UNITED STATES ET AL. Petition for writ of mandamus dismissed under this Court’s Rule 46.2.

AUGUST 2, 2019

Dismissal Under Rule 46

No. 18–1265. SEPTEMBER ENDS CO. ET AL. *v.* PENSION BENEFIT GUARANTY CORPORATION. C. A. 6th Cir. Certiorari dismissed under this Court’s Rule 46.1. Reported below: 902 F. 3d 597.

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AUGUST 5, 2019

Miscellaneous Orders

No. D-3042. IN RE DISCIPLINE OF SMITH. Micah Jared Smith, of Wilmington, Del., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D-3043. IN RE DISCIPLINE OF LYNCH. John T. Lynch, Jr., of Scottsdale, Ariz., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D-3044. IN RE DISCIPLINE OF SMITH. Arthur Jay Smith, of Pittsburgh, Pa., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D-3045. IN RE DISCIPLINE OF MCLEOD. Bruce B. McLeod III, of Dallas, Tex., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D-3046. IN RE DISCIPLINE OF UGWUONYE. Ephraim Chukwuemeka Ugwuonye, of Silver Spring, Md., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D-3047. IN RE DISCIPLINE OF SILBERMAN. Marc Norman Silberman, of Cleveland, Ohio, is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D-3048. IN RE DISCIPLINE OF PACKARD. Jerry Steven Packard, of Wooster, Ohio, is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

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No. D-3049. *IN RE DISCIPLINE OF STOVELL*. Leicester Bryce Stovell, of Washington, D. C., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D-3050. *IN RE DISCIPLINE OF MORAN*. Mark Brian Moran, of Aviston, Ill., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D-3051. *IN RE DISCIPLINE OF LANG*. Steven Anthony Lang, of Chicago, Ill., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. 18-565. *CITGO ASPHALT REFINING CO. ET AL. v. FRES-CATI SHIPPING CO., LTD., ET AL.* C. A. 3d Cir. [Certiorari granted, 587 U.S. 960.] Motion of petitioners to dispense with printing joint appendix granted.

Rehearing Denied

No. 17-1471. *HOME DEPOT U.S.A., INC. v. JACKSON*, 587 U. S. 435;

No. 17-6680. *EATON v. UNITED STATES*, 588 U. S. 905;

No. 17-9421. *OBEGINSKI v. GEORGIA*, 586 U. S. 859;

No. 17-9491. *McKISSICK v. DEAL, GOVERNOR OF GEORGIA, ET AL.*, 586 U. S. 863;

No. 17-9578. *McCLINTON v. ARKANSAS*, 586 U. S. 868;

No. 18-1223. *VILLENA ET AL. v. IANCU, DIRECTOR, UNITED STATES PATENT AND TRADEMARK OFFICE*, 587 U. S. 1052;

No. 18-1237. *GOUNDER v. GRIPPA ET AL.*, 587 U. S. 1016;

No. 18-1238. *GOUNDER v. PROGRESSIVE CREDIT UNION ET AL.*, 587 U. S. 1026;

No. 18-1322. *ALLIANCE TO END CHICKENS AS KAPOROS ET AL. v. NEW YORK CITY POLICE DEPARTMENT ET AL.*, 587 U. S. 1027;

No. 18-1339. *FORNESA ET AL. v. FIFTH THIRD MORTGAGE CO.*, 587 U. S. 1064;

No. 18-5259. *NOWLIN v. SHANNON ET AL.*, 586 U. S. 891;

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- No. 18–7449. *PATTON v. UNITED STATES*, 588 U. S. 910;
No. 18–7825. *JENKINS v. OHIO*, 587 U. S. 1041;
No. 18–7851. *YOUNG v. ASUNCION, WARDEN*, 587 U. S. 943;
No. 18–7891. *HAYMOND v. HELMAND INVESTMENT, LLC*, 587 U. S. 1041;
No. 18–8013. *PIECZYNSKI v. WELLS FARGO & Co., N. A.*, 587 U. S. 962;
No. 18–8149. *FRIES v. BECERRA, ATTORNEY GENERAL OF CALIFORNIA, ET AL.*, 587 U. S. 974;
No. 18–8170. *IN RE CLONINGER*, 587 U. S. 969;
No. 18–8180. *LUCY, PERSONAL REPRESENTATIVE OF FOX, DECEASED v. DIALYSIS ASSOCIATES ET AL.*, 587 U. S. 975;
No. 18–8214. *RABY v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*, 587 U. S. 1053;
No. 18–8271. *HERNANDEZ v. SIMS ET AL.*, 587 U. S. 989;
No. 18–8342. *SPEARS v. R&R CLEANING SERVICES ET AL.*, 587 U. S. 964;
No. 18–8413. *AVOKI v. CAROLINAS TELCO FEDERAL CREDIT UNION ET AL.*, 587 U. S. 992;
No. 18–8465. *KUNSMAN v. WALL*, 587 U. S. 1017;
No. 18–8483. *AGOSTO v. MILLER, SUPERINTENDENT, GREAT MEADOW CORRECTIONAL FACILITY*, 587 U. S. 1017;
No. 18–8497. *LYNCH v. IDAHO*, 587 U. S. 993;
No. 18–8548. *BELSER v. WOODS ET AL.*, 587 U. S. 1018;
No. 18–8606. *SMITH v. DOZIER ET AL.*, 587 U. S. 994;
No. 18–8609. *CLARK v. CARROLL COUNTY SHERIFF’S DEPARTMENT ET AL.*, 587 U. S. 1042;
No. 18–8613. *MAGEE v. WALT DISNEY CO. ET AL.*, 587 U. S. 1042;
No. 18–8626. *MURRAY v. UNITED STATES*, 587 U. S. 979;
No. 18–8657. *IBEABUCHI v. MARICOPA COMMISSIONERS*, 587 U. S. 1043;
No. 18–8658. *IBEABUCHI v. PENZONE ET AL.*, 587 U. S. 1043;
No. 18–8659. *IBEABUCHI v. WOOD*, 587 U. S. 1043;
No. 18–8679. *BELL v. SOUTH CAROLINA*, 587 U. S. 1043;
No. 18–8688. *MC SHAN v. UNITED STATES*, 587 U. S. 994;
No. 18–8690. *ONTIVEROS v. PACHECO, WARDEN, ET AL.*, 587 U. S. 994;
No. 18–8724. *IN RE CABELLO*, 587 U. S. 985;
No. 18–8811. *KING v. UNITED STATES*, 587 U. S. 1031;

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- No. 18–8836. *WOODSON v. UNITED STATES*, 587 U. S. 1055;
No. 18–8837. *WOODSON v. UNITED STATES*, 587 U. S. 1055;
No. 18–8838. *WOODSON v. UNITED STATES*, 587 U. S. 1055;
No. 18–8839. *WOODSON v. UNITED STATES*, 587 U. S. 1055;
No. 18–8840. *WOODSON v. UNITED STATES*, 587 U. S. 1055;
No. 18–8841. *WOODSON v. BRENNAN, POSTMASTER GENERAL*,
587 U. S. 1055;
No. 18–8910. *FISHER v. UNITED STATES*, 587 U. S. 1032;
No. 18–8947. *PALMA v. HARRIS COUNTY APPRAISAL REVIEW
BOARD*; and *PALMA v. HARRIS COUNTY APPRAISAL DISTRICT*, 588
U. S. 912;
No. 18–8959. *ARLOTTA v. MCKESSON CORP. ET AL.*, 588 U. S.
912;
No. 18–8976. *SHEPPARD v. DAVIS, DIRECTOR, TEXAS DEPART-
MENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVI-
SION*, 588 U. S. 912;
No. 18–8996. *DYAB v. UNITED STATES*, 587 U. S. 1034; and
No. 18–9036. *BROWN v. VIRGINIA ET AL.*, 587 U. S. 1056. Peti-
tions for rehearing denied.

No. 18–6290. *SOLGADO v. BRAUN, WARDEN*, 586 U. S. 1080.
Motion for leave to file petition for rehearing denied.

AUGUST 14, 2019

Dismissal Under Rule 46

- No. 18–969. *GOSPEL FOR ASIA, INC., ET AL. v. MURPHY ET AL.*
C. A. 8th Cir. Certiorari dismissed under this Court's Rule 46.1.

AUGUST 15, 2019

Certiorari Denied

No. 19–5561 (19A161). *WEST v. PARKER, COMMISSIONER, TEN-
NESSEE DEPARTMENT OF CORRECTION, ET AL.* C. A. 6th Cir.
Application for stay of execution of sentence of death, presented
to JUSTICE SOTOMAYOR, and by her referred to the Court, denied.
Certiorari denied. Reported below: 783 Fed. Appx. 506.

AUGUST 19, 2019

Miscellaneous Order

No. 19A153. *CANNON, SHERIFF v. SEAY*. Application for stay
of mandate, presented to THE CHIEF JUSTICE, and by him re-

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ferred to the Court, granted. Issuance of the mandate of the United States Court of Appeals for the Fourth Circuit, case No. 18–7242, is stayed pending filing and disposition of a petition for writ of certiorari, if such petition is filed on or before September 3, 2019. Should the petition for writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for writ of certiorari is granted, the stay shall terminate upon the issuance of the judgement of this Court. If no petition for writ of certiorari is filed on or before September 3, 2019, the stay shall terminate.

AUGUST 21, 2019

Miscellaneous Order

No. 19–5640 (19A200). IN RE SWEARINGEN. Application for stay of execution of sentence of death, presented to JUSTICE ALITO, and by him referred to the Court, denied. Petition for writ of habeas corpus denied.

AUGUST 22, 2019

Miscellaneous Order

No. 19–5682 (19A217). IN RE BOWLES. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Petition for writ of habeas corpus denied.

Certiorari Denied

No. 19–5617 (19A183). BOWLES *v.* FLORIDA ET AL. Sup. Ct. Fla. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied. Reported below: 276 So. 3d 791.

Statement of JUSTICE SOTOMAYOR respecting the denial of certiorari.

This case implicates important questions related to this Court’s decision in *Hall v. Florida*, 572 U. S. 701 (2014). *Hall* invalidated a Florida law categorically prohibiting intellectually disabled death-row prisoners with IQs above 70 from raising successful claims under *Atkins v. Virginia*, 536 U. S. 304 (2002). Later, the Florida Supreme Court held that *Hall* was retroactive. *Walls v. State*, 213 So. 3d 340, 346 (2016). With one hand, the Florida Supreme Court recognized that such intellectually disabled pris-

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oners sentenced before *Hall* have a right to challenge their executions on collateral review. With the other hand, however, the Florida Supreme Court has turned away prisoners seeking to vindicate this retroactive constitutional rule for the first time, by requiring them to have brought their *Hall* claims in 2004—a full decade before *Hall* itself was decided. See, e. g., 276 So. 3d 791, 794 (2019) (*per curiam*) (case below); *Harvey v. State*, 260 So. 3d 906, 907 (2018); *Blanco v. State*, 249 So. 3d 536, 537 (2018); *Rodriguez v. State*, 250 So. 3d 616 (2016). This Kafkaesque procedural rule is at odds with another Florida rule requiring counsel raising an intellectual-disability claim to have a “good faith” basis to believe that a death-sentenced client is intellectually disabled (presumably under the limited definition of intellectual disability that Florida had then imposed). Fla. Rule Crim. Proc. 3.203(d)(4)(A) (Supp. 2004). The time-bar rule also creates grave tension with this Court’s guidance in *Montgomery v. Louisiana*, 577 U. S. 190 (2016).

This petition, however, does not squarely present the concerns addressed in *Montgomery*. Instead, the questions presented challenge Florida’s procedural rule requiring certain post-*Hall* claims to have been brought in 2004 solely under the Eighth Amendment. Because I do not believe that the questions as presented merit this Court’s review at this time, I do not disagree with the denial of certiorari. In an appropriate case, however, I would be prepared to revisit a challenge to Florida’s procedural rule.

No. 19–5651 (19A203). *BOWLES v. DESANTIS, GOVERNOR OF FLORIDA, ET AL.* C. A. 11th Cir. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied. Reported below: 934 F. 3d 1230.

No. 19–5672 (19A213). *BOWLES v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied. Reported below: 935 F. 3d 1176.

AUGUST 23, 2019

Miscellaneous Orders

No. D–3052. *IN RE DISCIPLINE OF FRANKS.* Maurice Rudolph Franks, of Baker, La., is suspended from the practice of law in

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this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D-3053. IN RE DISCIPLINE OF BRUNER. Ben Elton Bruner, of Opelika, Ala., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. 18-260. COUNTY OF MAUI, HAWAII *v.* HAWAII WILDLIFE FUND ET AL. C. A. 9th Cir. [Certiorari granted, 586 U.S. 1144.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18-328. ROTKISKE *v.* KLEMM ET AL. C. A. 3d Cir. [Certiorari granted, 586 U.S. 1190.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18-916. THRYV, INC., FKA DEX MEDIA, INC. *v.* CLICK-TO-CALL TECHNOLOGIES, LP, ET AL. C. A. Fed. Cir. [Certiorari granted *sub nom.* *Dex Media, Inc. v. Click-To-Call Technologies, LP*, 588 U.S. 905.] Motion of petitioner to dispense with printing joint appendix granted.

Rehearing Denied

No. 18-1199. INVESTPIC, LLC *v.* SAP AMERICA, INC., 588 U.S. 908;

No. 18-1288. COULTER *v.* ADT SECURITY SERVICES ET AL., 587 U.S. 1052;

No. 18-1392. BARONE *v.* WELLS FARGO BANK, N. A., 587 U.S. 1064;

No. 18-7094. SMITH *v.* CALIFORNIA, 588 U.S. 921;

No. 18-7581. ERWIN *v.* WARDEN, FEDERAL CORRECTIONAL INSTITUTION COLEMAN-LOW, 587 U.S. 1027;

No. 18-7652. ANDERSON *v.* COLORADO, 587 U.S. 1027;

No. 18-8133. MINGO *v.* UNITED STATES, 587 U.S. 925;

No. 18-8452. IN RE MASON, 587 U.S. 985;

No. 18-8553. HICKS *v.* DALLAS COUNTY COMMUNITY COLLEGES, 587 U.S. 1018;

No. 18-8597. BROWN *v.* BURTON ET AL., 587 U.S. 1042;

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- No. 18–8611. *BAILEY v. GASAWAY*, 587 U. S. 1042;
No. 18–8667. *ANSON v. UNITED STATES*, 587 U. S. 1030;
No. 18–8668. *TEAGUE v. NORTH CAROLINA*, 587 U. S. 1043;
No. 18–8764. *DREVALEVA v. DEPARTMENT OF VETERANS AFFAIRS ET AL.*, 587 U. S. 1044;
No. 18–8765. *YOUNG v. DUNCAN ET AL.*, 587 U. S. 1054;
No. 18–8791. *BISSONETTE v. DOOLEY, WARDEN, ET AL.*, 587 U. S. 1031;
No. 18–8800. *WINN v. METZGER, WARDEN, ET AL.*, 587 U. S. 1065;
No. 18–8813. *BULTMAN v. CIGNA GROUP INSURANCE CO. ET AL.*, 587 U. S. 1055;
No. 18–8815. *REICH v. SLAGLE, CORRECTIONAL ADMINISTRATOR, MOUNTAIN VIEW CORRECTIONAL INSTITUTION*, 587 U. S. 1065;
No. 18–8823. *AL OBAIDY v. MCALEENAN, ACTING SECRETARY OF HOMELAND SECURITY, ET AL.*, 587 U. S. 1055;
No. 18–8828. *OVERBY v. PENNSYLVANIA* (two judgments), 587 U. S. 1031;
No. 18–8859. *BORDEN v. CHEAHA REGIONAL MENTAL HEALTH CENTER, INC.*, 587 U. S. 1066;
No. 18–8878. *JARA v. STANDARD PARKING ET AL.*, 587 U. S. 1066;
No. 18–8881. *COLEMAN v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.*, 587 U. S. 1055;
No. 18–8905. *BRYANT v. ARMY CORPS OF ENGINEERS ET AL.*, 588 U. S. 911;
No. 18–8926. *JACKSON v. MUKORO ET AL.*, 588 U. S. 911;
No. 18–8949. *MUHAMMAD v. TAYLOR, WARDEN*, 587 U. S. 1033;
No. 18–8966. *DRAKE v. UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF TEXAS*, 588 U. S. 912;
No. 18–9052. *GRENNING v. KEY, SUPERINTENDENT, AIRWAY HEIGHTS CORRECTIONS CENTER, ET AL.*, 587 U. S. 1056;
No. 18–9065. *ROSA v. FLORIDA ET AL.*, 587 U. S. 913;
No. 18–9078. *BRADFORD v. WORKERS’ COMPENSATION APPEALS BOARD ET AL.*, 588 U. S. 913;
No. 18–9151. *SANDLAIN v. UNITED STATES*, 587 U. S. 1047;
No. 18–9154. *SMITH v. CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS*, 587 U. S. 1067;
No. 18–9181. *ASKIA v. UNITED STATES*, 587 U. S. 1057; and
No. 18–9192. *BALICE v. UNITED STATES*, 587 U. S. 1068. Petitions for rehearing denied.

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Certiorari Denied

No. 19–5715 (19A226). *CRUTSINGER v. TEXAS*. Ct. Crim. App. Tex. Application for stay of execution of sentence of death, presented to JUSTICE ALITO, and by him referred to the Court, denied. Certiorari denied.

No. 19–5755 (19A237). *CRUTSINGER v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Application for stay of execution of sentence of death, presented to JUSTICE ALITO, and by him referred to the Court, denied. Certiorari denied. Reported below: 936 F. 3d 265.

Statement of JUSTICE SOTOMAYOR respecting the denial of certiorari.

Petitioner Billy Jack Crutsinger seeks to reopen his petition for habeas corpus under Federal Rule of Civil Procedure 60(b)(6). This Rule requires that the movant “show ‘extraordinary circumstances’ justifying the reopening of a final judgment.” *Gonzalez v. Crosby*, 545 U. S. 524, 535 (2005) (quoting *Ackermann v. United States*, 340 U. S. 193, 199 (1950)). The District Court denied Crutsinger’s Rule 60(b) motion and the Court of Appeals for the Fifth Circuit denied a certificate of appealability. See 936 F. 3d 265 (2019); 28 U. S. C. § 2253(c). Because I agree that Crutsinger has not made the requisite showings for relief, I concur in the denial of certiorari.

I write separately to note potential tension between this Court’s decision in *Gonzalez* and the Fifth Circuit’s approach to Rule 60(b)(6). *Gonzalez* left open the possibility that in an appropriate case, a change in decisional law, alone, may supply an extraordinary circumstance justifying Rule 60(b)(6) relief. Although this Court observed that “not every interpretation of the federal statutes setting forth the requirements for habeas provides cause for reopening cases long since final,” the Court also noted that “[a] change in the interpretation of a *substantive* statute may have consequences for cases that have already reached final judgment, particularly in the criminal context.” 545 U. S., at 536, and n. 9.

Several Circuits recognize that a change in decisional law, by itself, may justify Rule 60(b)(6) relief. See, e. g., *Cox v. Horn*, 757 F. 3d 113, 121 (CA3 2014) (“[W]e have not foreclosed the